

EDM 101 – Ethics and Patients' Rights in Dental Medicine

Lecture 11

Negligence and Litigation in Dentistry

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This classes learning outcomes

By the end of this lecture you are able to

- Define negligence clearly
- Identify its key elements
- Recognize legal risks in dental practice
- Understand how to prevent litigation



- Complaints may lead to legal cases
- Early communication can prevent litigation

When ethical practice fails, legal consequences follow



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Negligence

Negligence: Failure to provide the standard of care expected from a dentist, resulting in harm to the patient.

Not every mistake is negligence
Harm must be present



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Examples

A. Not diagnosing caries

B. Wrong extraction

C. Ignoring infection

All of these points will lead to patient harm.



Elements of Negligence

1. Duty of care
2. Breach of duty
3. Causation
4. Damage



Duty of Care

Dentist-patient relationship exists

Dentist must provide proper care



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Breach of Duty

- The care provided falls below the standard of care.

Examples:

- Wrong diagnosis
- Poor technique
- No consent



Standard of Care

- Based on average skilled dentist
- Higher skill expected for complex procedures

If you do implants, you are judged as an implant dentist – not a beginner.



Causation

Your action must cause the harm



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Damage (Injury)

- Physical
- Psychological
- Financial

If there is no injury, there is no case.



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Non-Negligent Situations

- A. Known complications
- B. Proper consent taken
- C. Patient non-compliance

A bad outcome does not mean the dentist is wrong.



Liability of Dentist

The responsibility of a Dentist

- A. Their work
- B. Staff actions



Breach of Contract

- A. In private treatment, a patient can complain to the dentist if the result does not meet the agreed standard.
- B. The patient does not need to prove negligence in the treatment, only that the treatment was not satisfactory.
- C. Treatment should be safe, functional, and of good quality for every patient.
- D. If it is not, the patient can reject the treatment and claim compensation.



Compensation

- Financial payment only, since the only remedy for injury in civil claims is money.

Types:

- A. General (pain)
- B. Special (costs)



Examples of Compensations

- Pain and suffering
- Treatment costs
- Future care



Legal Process

1. Complaint
2. Investigation
3. Expert review
4. Court
 - A. Patients usually use a specialized lawyer to file a case.
 - B. Some patients represent themselves.
 - C. Dentists are supported by a defense organization that handles communication and legal matters.



Prevention

- Good communication
- Proper consent
- Documentation
- Follow standards

Most lawsuits are prevented by communication, not skill.



Summary:

- Negligence is a combination of breach and harm
- It requires 4 elements
- Not all outcomes are negligence
- Prevention is key



Thank You!



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